

30.07.2021

Fine for GDPR Violation

The National Supervisory Authority has completed an investigation into an individual and found that two contraventions were committed by violating the provisions of Article 5 paragraph (1) letters a) and b) and paragraph (2), in relation to Article 6 paragraph (1), as well as the provisions of Article 14 paragraphs (1)-(4) of the General Data Protection Regulation.

As such, the individual, as the data controller, was sanctioned with:

- a fine of 492.75 lei (equivalent to 100 EURO) for the violation of Article 5 paragraph (1) letters a) and b) and paragraph (2) of the GDPR and Article 6 paragraph (1) of the GDPR;
- a fine of 492.75 lei (equivalent to 100 EURO) for the violation of Article 14 paragraphs (1)-(4) of the GDPR.

The investigation was initiated following the receipt of several complaints.

Thus, the data controller was reported for disclosing personal data, on one hand, of an individual by distributing materials within households in the municipality and by posting on their personal Facebook account a photograph of the salary slip belonging to that individual, and on the other hand, for disclosing personal data of a minor son of another data subject, contained in a photograph of a page from the Register of Children Enrolled at the Normal Program Kindergarten in that municipality.

As a result of the investigation conducted, the National Supervisory Authority found that the data controller did not provide evidence that they processed the personal data contained in the salary slip of the data subject (name, surname, personal identification number, workplace, position, salary) legally, thus violating the principles of personal data processing provided in Article 5 paragraph (1) letters a) and b) and paragraph (2) of the GDPR and the provisions of Article 6 paragraph (1) of the GDPR.

At the same time, the data controller did not provide evidence that they ensured the information of the data subjects regarding the processing of personal data contained in the photographed page from the Register of Children Enrolled at the Normal Program Kindergarten (name and surname of the minor son of the data subject), thus violating the provisions of Article 14 paragraphs (1)-(4) of the GDPR.

Legal and Communication Directorate
N.S.A.P.D.C.P.